

25STCV28683 25STCV28683

County: los-angeles

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Case Number: 25STCV28683 Hearing Date: August 21, 2026 Dept: 413

TENTATIVE RULING

HEARING

DATE: Friday August 21, 2026

CASE

NUMBER: 25STCV28683

CASE NAME: Jin Kim v. Young Joo Park

RULING SUMMARY: Plaintiff's request for default judgment

is denied. The OSC re Default Judgment is continued to _____, 2026, at 8:30AM.

In its May 1, 2026, the Court pointed out several deficiencies in the papers submitted by Plaintiff in connection with its request for default judgment.

The Court repeats below the May 1, 2026 Ruling, except for the issues regarding Plaintiff's request for judgment on the fraud claim, as Plaintiff has now waived any claim for fraud.

request
for default judgment

I. Legal Standard

Code of Civil Procedure section 585 authorizes entry of a judgment where a Defendant has failed to timely answer after having

been properly served.¿ A party seeking judgment on the default by the Court must file a Request for Court Judgment, and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) a proposed form of judgment; (6) a dismissal of all parties against whom judgment is not sought; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (CRC, rule 3.1800.)¿

II. Discussion

A. Procedural Summary

On October 1, 2025, Jin Kim ("Plaintiff"), in pro per, filed this action against Young Joo Park ("Defendant") and Does 1 to 25.

The Complaint alleges two causes of action for (1) breach of contract and (2) fraud.

Default was entered against Defendant on December 23, 2025. Plaintiff is requesting a Default Judgment

B. Factual Allegations

In the Complaint, Plaintiff alleges that in September 2009, Defendant initially agreed to invest \$100,000 in a business venture but only invested \$80,000. (Compl., ¶ 8.) "In order to secure the return of the investment, Plaintiff KIM executed a Deed of Trust and Assignment of Rents for Defendant PARK on September 30, 2009" pertaining to a property located in Kingman, Arizona (the "Kingman Property"). (Id. ¶¶ 9, 12.) "In order to secure the return of the investment, Plaintiff KIM executed a Deed of Trust and Assignment of Rents for Defendant PARK on September 30, 2009." (Id. ¶ 10.)

"[I]n 2010, Plaintiff KIM returned

\$38,000.00 in cash and \$42,000.00 in services to Defendant PARK. However, despite many demands, Defendant PARK failed to reconvey the deed of trust executed on September 9, 2009." (Id. ¶ 11.) In July 2025, a \$100,000.00 lien was placed on the Kingman Property "and Defendant PARK received \$100,000.00 again even though Plaintiff KIM returned all money to Defendant PARK in 2010." (Id. ¶ 12.) Plaintiff alleges that he is entitled to \$246,000 because the Kingman Property had a sale price of \$1,000,000 but was only sold for \$854,000 "due to the failure and delay of the execution of the reconveyance deed by Defendant PARK." (Id. ¶ 13.) "Despite repeated demands by Plaintiff KIM, Defendant PARK failed to reconvey the deed of trust and took additional \$100,000.00, and thus, Defendant PARK owes Plaintiff KIM \$100,000.00 and loss of sale in the sum of \$246,000.00." (Id. ¶ 16.) "There is now due, owing and unpaid sum of \$346,000.00 from Defendant PARK to Plaintiff KIM." (Id. ¶ 17.)

Plaintiff's fraud claim is premised on the allegation that "Defendant PARK intentionally took \$100,000.00 even though Defendant PARK knew that Plaintiff KIM returned all the money invested by Defendant PARK." (Compl., ¶ 19.) "Plaintiff was justified in relying on the representations of Defendant PARK, and in reliance thereupon Plaintiff KIM has suffered damage and injury, including but not limited to monetary damages, loss of use of the Property, loss of income, loss of future income, attorneys' fees, costs and expenses incurred and future costs and expenses, to be determined upon proof." (Id. ¶ 22.)

C. The Breach of Contract Claim

The Court is not clear on what the specific terms of the Parties' contract were.

Plaintiff's declaration states that Defendant loaned Plaintiff \$100,000 in September of 2009 which was secured by a deed of trust. (Kim Decl., ¶ 3.) "I executed a Deed of Trust and Assignment of Rents for Defendant PARK on September 30, 2009. Copy of the first page of the Deed of Trust and Assignment of Rents is attached hereto as Exhibit A." (Id. ¶ 5, Ex. A [Deed of Trust].)

The Deed of Trust and Assignment of Rents states in relevant part:

TRUSTOR: JIN
KIM, A SINGLE MAN

Whose mailing address is: 909 Andy Vine, Kingman, AZ

TRUSTEE: CHICAGO TITLE INSURANCE COMPANY, a Missouri
Corporation . . .

BENEFICIARY: YOUNG JOO PARK

Whose mailing address is: 642 E 66TH, WILLIAM, AZ 86046

[. . .]

WITNESSETH: The trustor hereby grants, conveys,
transfers and assigns to the Trustee in Trust, with Power of Sale the above
described real property, together with leased, rents, issues, profits, or
income . . .

FOR THE PURPOSE OF SECURING:

A. Performance
of each agreement of Trustor herein contained.

B. Payment of
indebtedness evidenced by Promissory Note or Notes of even date herewith, and
an extension or renewal thereof, in the principal sum of \$100,000.00,
executed by Trustor in favor of Beneficiary or order.

C. Payment of additional sums and interest thereon
which may hereafter be loaned to Trustor, or his successors or assigns,
when evidenced by a Promisor Note or
Notes reciting that they are secured by a Deed of Trust.

[
. . .]

(Kim Decl., Ex. A.)

The Deed of Trust states a Promissory

Note was executed, but the note is not offered as evidence by Plaintiff.

Moreover, as only the first page of the Deed of Trust is provided, the Court cannot ascertain what other terms Defendant agreed to be bound by, including reconveyance of the deed to Plaintiff upon payment of the loan and any entitlement by Defendant to collect interest on the loan.

Without evidence of the full terms of the parties' contract, the Court cannot make a determination of breached by Defendant.

Plaintiff states he repaid \$38,000 in cash to Defendant Park in 2010. (Kim Decl., ¶ 7.) Plaintiff offered no bank statements to show that this sum was paid in 2010 and has not explained the why documentary evidence has not been offered. Plaintiff states that in April 2017, Defendant Park promised to waive the remaining balance of \$42,000.00 "if I sell the hotel for her." (Id. ¶ 8.) But Plaintiff has not stated whether this promise was written or oral. Defendant's hotel is located in Arizona, and Plaintiff states "I sold her hotel successfully by hiring a real estate broker in Los Angeles, CA. The hotel was sold at 3.5 Million Dollars." (Id. ¶ 9.) Plaintiff fails to attach a declaration by the real estate broker stating that they were hired at the behest of Plaintiff to sell the hotel in Arizona. Moreover, Plaintiff presents no evidence that the hotel was owned by Defendant and that it was sold.

In support of his claims, Plaintiff also presents the declaration of Chul Huh who states that "[f]rom 006 through 2017, I served as the general manager of Ms. Young Joo Park's hotel." (Huh Decl., ¶ 2.) "In or about April 2017, Ms. Young Joo Park promised Mr. Jin Kim that, if he helped sell her hotel, she would waive the balance and release the lien on his property." (Id. ¶ 4.)

Chul Huh's declaration is hearsay and fails to provide facts stating when and how they knew about Defendant's promise to Plaintiff Park.

Second, the Complaint alleges that venue is proper in Los Angeles, California because this is where the contract was entered into. (Compl., ¶ 5.) Plaintiff fails to offer evidence to lay a foundation for Chul Huh, who the general manager of the hotel in Arizona, to know about the contract made in California. Moreover, the Deed of Trust gives

Plaintiff and Defendants mailing address as Arizona rather than California. This evidence raises questions as to whether the contract was entered into in California rather than Arizona.

Third, Plaintiff asserts that he lost \$246,000 in the sale of the Kingman Property because he had to give seller a credit in that sum due to Defendant's failure to execute a reconveyance of the deed of trust. (Kim Decl., ¶ 12., Ex. C [Settlement Statement].) Plaintiff attaches the Seller's Settlement Statement which shows that Plaintiff did provide \$246,000 in seller's credit. (Id. Ex. D.) However, the Settlement Statement also shows that \$5,028.17 was owed in delinquent taxes. Defendant took \$100,000 because they held a fourth deed of trust; a second deed of trust was held by a Kwang Joshua Park, and a third deed of trust was held by a Sunny Cho. Consequently, Plaintiff fails to show that the \$246,000 he paid as seller's credit was due solely to Defendant refusing to reconvey the deed of trust, and not also because of the other encumbrances on the property, including delinquent taxes and other deeds of trust. In other words, Plaintiff fails to show that the \$246,000 requested in damages were foreseeable damages and were proximately caused by Defendant's failure to reconvey the Kingman Property. (See Civ. Code, § 3301 ["No damages can be recovered for a breach of contract which are not clearly ascertainable in both their nature and origin."].)

In light of the issues noted above, Plaintiff fails to show he is entitled to default judgment as to the breach of contract claim.

Conclusion

Plaintiff's request for default judgment is denied. Plaintiff may submit further evidence to support a judgment by default on the breach of contract claim.

The OSC re Default Judgment is continued to _____, 2026, at 8:30AM.

Date: _____

William
E. Weinberger

Judge,
Los Angeles Superior Court